

Estd : 1984

CHENNAIGAMES

Memorandum of Understanding

Between

NATIONAL ENGINEERING COLLEGE,

K.R. NAGAR

and

CHENNAIGAMES STUDIO, Pvt., Ltd.,

CHENNAI

Memorandum of Understanding

THIS DEED OF MEMORANDUM OF UNDERSTANDING (MOU) is made on this 3rd Day of August 2026, between **M/s CHENNAIGAMES STUDIO Private Limited**, AF3, 1st Floor, Old no.4, New no.7, KSR Vasantham Apartment, Govardhan Street, Royapettah, Chennai 600014, Tamilnadu, India represented through its CEO (hereinafter referred to as **"CHENNAIGAMES STUDIO",** which expression shall unless repugnant to the context or meaning thereof, include its successor-in-interest and permitted assigns) is engaged in the business of designing, developing, and delivering immersive and entertaining gaming experiences for players worldwide and provides game development and allied services to the gaming industry

And

M/s NATIONAL ENGINEERING COLLEGE, an educational institution run by National Educational and Charitable Trust which is registered under Indian Charitable Trust Act of Government of India, established under the Self-financing Scheme offering technical courses and its office situated at Kovilpatti, Thoothukudi District, Tamilnadu State (hereinafter referred to as "**NEC**"), and represented by its authorized signatory Principal of NEC.

NOW THIS AGREEMENT WITHNESSETH AND IT IS HEREBY AGREEED BY AND BETWEEN THE PARTIES HERETO AS FOLLOWS:

1. OBJECTIVES OF THE AGREEMENT

The objective of this agreement is:

a) To promote interaction between CHENNAIGAMES STUDIO and NEC in mutually beneficial areas. To provide a formal basis for initiating interaction between CHENNAIGAMES STUDIO and NEC.

b) To carry out Research and Development work in the fields of Game Development, AR & VR and Image processing.

c) To innovate and invent new methodologies and product / services in collaboration with CHENNAIGAMES STUDIO and NEC.

d) To provide industrial training and internships onsite and offsite for the UG/PG students identified through their interest and eligibility as per the execution of the agreement.

2. PROPOSED MODES OF COLLABORATION

CHENNAIGAMES STUDIO and NEC propose to collaborate through

i. Offering student projects / fellowships programs at NEC premises.

ii. Hiring suitable students of NEC for the employment with CHENNAIGAMES STUDIO. The eligibility criteria for the selection will be as per the recruitment norms of CHENNAIGAMES STUDIO.

iii. R&D projects may be carried out either wholly / partially at NEC or at CHENNAIGAMES STUDIO premises.

iv. Training for NEC personnel through continuing Education Programmes to be conducted in areas of interest to CHENNAIGAMES STUDIO.

v. NEC will provide the necessary infrastructure at the AR/VR Zone while CHENNAIGAMES STUDIO will provide necessary functional tasks to operate the center as required.

vi. Proof of concept will be developed in latest technologies by NEC students and faculty with the help of CHENNAIGAMES STUDIO Industrial experience.

vii. Training will be conducted for the students and engaged faculty of NEC as agreed CHENNAIGAMES STUDIO authorities.

Each of the above said modes of interaction will be initiated by entering into this agreement between the two parties for atleast three years with effect from the date of sign of this agreement.

3. FORMS OF RESEARCH AND DEVELOPMENT PROGRAMS

The form of any of the said Research and Development Program (hereinafter referred to as "Research Program") will be subject to a separate Research Agreement entered into by the Parties but may also include the following:

a) **In their own existing facilities** – The performance of research individually by each Party or concurrently by both Parties in mixed groups at their own facilities with regular exchanges of results.

b) **In a separate research and development facility** – The performance of research by the technical personnel of both Parties working together in the facilities of one Party or in mixed groups at the facilities supported by either Party.

c) **Third Parties** – No Third Party shall be included in the R&D work unless approved by CHENNAIGAMES STUDIO.

4. TECHNICAL AREAS OF COLLABORATION

The principal technical areas of collaboration between CHENNAIGAMES STUDIO and NEC will be as set out in **Annexure A.**

5. AGREEMENTS FOR RESEARCH COLLABORATION

Each of the research collaborations undertaken by the parties hereunder shall be initiated by the signing of a separate research agreement between the parties, which will describe in detail:

a) The form, nature, scope and schedule of the research collaboration between the parties to be planned ahead of scheduling the task.

b) The estimated duration of the research collaboration in the form of Consultancy work together with the amount of funding based on nature of tasks, to be received from CHENNAIGAMES STUDIO or suggested third parties as recommended by CHENNAIGAMES STUDIO after mutual consent of both Parties.

c) The treatment of intellectual property and data rights, including patents, industrial design registration, copyrights and all other proprietary information (including

innovations not patented, designs not registered etc.) which result from the research collaboration or which belong to a party and are used in research collaboration are under the rights of CHENNAIGAMES STUDIO.

d) Other provisions as may be mutually agreed upon, including provisions covering the consequences of default or termination by a participant, term, arbitration of disputes and applicable law.

6. CONFIDENTIALITY

The Parties understand and acknowledge that, whether in the course of performance of this agreement or otherwise, it will receive or become aware of Confidential Information of the other Party. The Parties agree and acknowledge that confidential information shall remain the sole property of Disclosing Party.

a) The Parties agree that it shall use the confidential Information of the disclosing Party only as follows:
   i. To use such confidential Information only in relation to the agreement;
   ii. Not to disclose Party's prior written consent, except to the receiving Party's employees, agents, candidates / students working on the project and involved in the performance of this agreement on a confidential and need to know basis and provided that employees, agents and candidates / students are bound by written agreements of confidentiality which are at least as stringent as the provisions of this agreement; and
   iii. Safeguard the Confidential Information to the same extent that it safeguards its own confidential materials or data.

b) The Parties hereby agree that Confidential Information shall not include any of the following information that:
   i. Is independently developed by the receiving Party without reference to any Confidential Information of the disclosing Party;
   ii. Is subsequently learned from a third party without a duty of confidentiality;
   iii. Is as of the time of its disclosure part of the public domain;
   iv. At the time of disclosure was already in the possession of the receiving Party; and

v. Is required to be disclosed pursuant to a court order or government authority, whereupon the receiving Party shall, at its earliest opportunity, provide written notice to the disclosing Party prior to such disclosure and where feasible giving the disclosing Party a reasonable opportunity to secure a protective order or take other action as appropriate.

c) The receiving Party shall immediately upon becoming aware of any unauthorized disclosure, give notice to the other Party of such unauthorized disclosure, misuse, theft of other loss of Confidential Information, whether inadvertently or otherwise.

d) The Parties' obligations under this Article shall extend to the non-publicizing of any dispute arising out of this agreement.

e) It is understood that during the course of this agreement it may be necessary for either party to disclose confidential / Proprietary information to the other.

f) The terms of this Article shall continue in full force and survive for a period of three (3) years after termination of this agreement and in case of any trade secret, till perpetuity.

7. OWNERSHIP, INTELLECTUAL PROPERTY RIGHTS AND RESIDUALS

a) The software and documentation and any portion or product thereof built, developed, compiled, arranged or acquired or CHENNAIGAMES STUDIO by NEC in the performance of Services in terms of this Agreement or any renewal hereof or any Statement of Work, shall remain the sole property of CHENNAIGAMES STUDIO unless specified in the sections below. The parties hereby acknowledge that any work performed by NEC for CHENNAIGAMES STUDIO is specially ordered or commissioned by CHENNAIGAMES STUDIO, is being created at the insistence of CHENNAIGAMES STUDIO, and shall be deemed "rk made for hire" under international copyright law. CHENNAIGAMES STUDIO shall have the right to use the whole work, any part of parts thereof, or none of the work, as it sees fit. CHENNAIGAMES STUDIO may alter the work, add to it, or combine it with any other work or works, at its sole discretion. NEC hereby assigns to CHENNAIGAMES STUDIO all of its right, title and interest in such software and documentation and agrees to sign and deliver to CHENNAIGAMES STUDIO such further documents

and instruments, and do all such other things as CHENNAIGAMES STUDIO may reasonably request from time to time in order to perfect or record the assignments.

b) Any software, modules, routines, tools, (Pre-existing Works) belonging to CHENNAIGAMES STUDIO and used in the software delivered to NEC, shall remain the property of CHENNAIGAMES STUDIO.

c) This Agreement or any Statement of Work does not grant NEC the right to use CHENNAIGAMES STUDIO's or its affiliates' trademarks, trade names or service marks.

d) Notwithstanding any of the foregoing, CHENNAIGAMES STUDIO is and will remain the sole and exclusive owner of all right, title and interest in and to the CHENNAIGAMES STUDIO materials and any other CHENNAIGAMES STUDIO owned IP, including without limitation CHENNAIGAMES STUDIO's name, logos, trademarks, service marks and patents. To the extent NEC requires use of the CHENNAIGAMES STUDIO IP in connection with providing the Services, CHENNAIGAMES STUDIO grants NEC a global, royalty-free, non-exclusive, non-transferable license for NEC to access, use and copy the CHENNAIGAMES STUDIO IP (but only to the extent permitted by any applicable third party license agreement) and only for the purpose of providing Services hereunder. Such license shall be only for the term of the applicable statement of work for which such CHENNAIGAMES STUDIO IP is required and shall be limited to the extent necessary for NEC to perform its obligations hereunder.

e) CHENNAIGAMES STUDIO's proprietary computer software, methodologies, techniques, software libraries, tools, algorithms, materials, products, ideas, designs, and know-how used by CHENNAIGAMES STUDIO in providing services (including all copies, enhancements, modifications, revisions, and derivative works of any of the foregoing, other than the foregoing that results from or is related to the Services) that: (a) existed prior to the effective date, or (b) are developed by CHENNAIGAMES STUDIO independently of providing the Services hereunder shall be the property of CHENNAIGAMES STUDIO. Except as expressly authorized in this Agreement or a Statement of Work hereunder, NEC will not copy, modify, distribute or transfer (by

any means), display, sublicense, rent, reverse engineer, decompile, or disassemble these properties.

f) CHENNAIGAMES STUDIO and its employees, shall be free to use and employ their existing skills, and general ideas, general concepts, general knowledge, general experience, general processes, and general know-how gained or learned during the course of the Statement of Work (the "Residual Information"), to develop, independently, materials similar to those of materials developed or prepared hereunder, so long as CHENNAIGAMES STUDIO develops the same independently and without the use of disclosure of any NEC Information.

g) To the extent a Statement of Work states that CHENNAIGAMES STUDIO is to be provided with one or more copies of a NEC proprietary software product, NEC hereby grants to CHENNAIGAMES STUDIO the worldwide right and license in perpetuity (to the extent NEC is legally able to do so) to use the version of such software provided to CHENNAIGAMES STUDIO in support of the Deliverables provided under the Statement of Work.

h) Pre-Existing Technology: Each party shall exclusively own all right, title, and interest in and to its own Pre-Existing Technology and all Improvements and Intellectual Property Rights thereto, provided that CHENNAIGAMES STUDIO shall own any Pre-Existing Technology and improvements thereto hat are incorporated into or included as part of the Deliverables, together with any Intellectual Property Rights with respect thereto.

i) Further Assurances: Each Party agrees to take such further action and execute, or cause its employees, agents, and contractors to execute, such further instruments as may be necessary to give effect to the ownership provisions of this Agreement.

8. NO PUBLICITY

Each Party agrees not to publicize or disclose the existence or terms of this Agreement to any third Party without the prior consent of the other Party except as required by law (in which case, the Party seeking to disclose the information shall give reasonable notice to the other Party of its intent to make such a disclosure). Neither Party shall make any press release or similar public statement without the prior consent of the other Party.

9. NON-EXCLUSIVITY

The relationship of the parties under this Agreement shall be nonexclusive and both parties, including their affiliates, subsidiaries and division, are free to pursue other agreements or collaborations of any kind. However, when entering into a particular research agreement, the participants may agree to limit each party's right to collaborate with others on that subject.

10. THIRD PARTY MATERIALS; OPEN SOURCE SOFTWARE

NEC will not, without CHENNAIGAMES STUDIO's express prior written consent, (i) incorporate, combine, or distribute with any Development Deliverables or the Goods, or any derivative thereof, any Public Software; or (ii) use Public Software in the development of Development Deliverables of the Goods, in such a way that would cause the Development Deliverables or the Goods, or any derivative thereof, to be subject to all or part of the license obligations or other intellectual property-related terms with respect to such Pubic Software, including the obligations that the Development Deliverables or the Goods, or any derivative thereof be disclosed or distributed as Source Code, be licensed for the purpose of making derivatives of such software, or be redistributed free of charge, contrary to the terms and conditions of this Agreement.

11. INDEMNIFICATION AND LIABILITY

a) INDEMNITY

Each party agrees to indemnify, defend and hold harmless the other party, and any of their respective officers, directors, shareholders, agents, attorneys, successors and assigns, from and against all losses, claims, demands, causes of action, obligations, damages, judgements, expenses, and liabilities of any kind, including reasonable attorneys' fees, based upon, arising out of, or in connection with, any breach of the representations, warranties, covenants or agreements of such party under this Agreement.

b) LIMITATION OF LIABILITY

IN NO EVENT SHALL EITHER PARTY BE LIABLE FOR INDIRECT, INCIDENTAL, CONSEQUENTIAL, PUNITIVE OR SPECIAL DAMAGES, LOSS OF PROFITS, LOSS OF USE OF DATA, OR INTERRUPTION OF

BUSINESS, WHETHER SUCH DAMAGES ARE ALLEGED IN TORT, CONTRACT OR INDEMNITY, EVEN IF SUCH PARTY HAS ,BEEN ADVISED OF THE POSSIBILITY OF SUCH DAMAGES.

NOTWITHSTANDING ANYTHING TO THE CONTRARY IN THIS AGREEMENT, EACH PARTY'S LIABILITY TO THE OTHER OR NAY OTHER PERSON OR ENTITY ARISING OUT OF OR IN CONNECTION WITH THIS AGREEMENT OR THE SERVICES EXCEED, IN THE AGGREGATE, THE TOTAL FEES PAID BY M-TUOTR TO NEC FOR THE SERVICES WITH RESPECT TO WHICH SUCH LIABILITY RELATES (OR IN THE CASE OF ANY LIABILITY NOT RELATED TO A PARTICULAR PORTION OF THE SERVIES, THE TOTAL FEES PAID BY THE M-TUOTOR TO NEC UNDER THE APPLICABE WORK ORDER), WHETHER SUCH LIABILITY IS BASED ON AN ACTION IN CONTRACT, WARRANTY, STRICT LIABILITY OR TORT (INCLUDING, WITHOUT LIMITATION, NEGLIGENCE) OR OTHERWISE, THE LIMITATIONS SPECIFIED IN THIS SECTION WILL SURVIVE AND APPLY EVEN IF ANY LIMITED REMEDY SPECIFIED IN THIS AGREEEMENT IS FOUND TO HAVE FAILED OF ITS ESSENTIAL PURPOSE.

12.IMPECCABLE POWER OF ATTORNEY

CHENNAIGAMES STUDIO is hereby appointed as the irrevocable attorney of NEC with full powers of substitution for the purpose of carrying out any and all acts and execute any and all agreements, proxies or other documents which it may deem useful in order to exercise its rights or any rights which NEC neglects or refuses to execute or to carry out.

13.TERMS AND TERMINATION

a) This Agreement, unless extended by mutual written agreement of the parties, shall expire 3 (three) years after the Effective Date until terminated in accordance with this Agreement. Neither Party can terminate this agreement for the first 4 (four) months after the effective date ('hereinafter referred as lockin period")

b) Either Party may terminate this Agreement upon written notice to the other in the event that: (a) the Other Party commits a material breach of the Agreement and fails to cure such default to the non-defaulting Party's reasonable satisfaction within 30 days after receipt of notice; or (b) the other Party becomes insolvent or bankrupt assigns all or a substantial part of its business or assets for the benefit of creditors, permits the appointment of a receiver for its business or assets, becomes subject to any legal proceeding relating to insolvency or the protection of creditor' rights or otherwise ceases to conduct business in the normal course.

c) Either Party may terminate this Agreement without cause upon prior written notice of 30 days after the expiry of lockin period. However, no such early termination of this Agreement, whether mutual or unilateral, shall affect the obligations of the participants under any Research Agreement, Confidentiality clause as referenced in clause 6 above, or any other agreement entered into pursuant to this Agreement, which obligations shall survive any such termination.

14.FORM MAURER

Neither Party will be liable or responsible to the other Party nor be deemed to have materially breached this Research Agreement for failure or delay in fulfilling or performing any term of this Research Agreement when such failure or delay is caused by or results from causes beyond the reasonable control of the affected Party, including, without limitation, fire, floods, earthquakes, natural disasters, embargoes, war, acts of war (whether war be declared or not), acts of terrorism, insurrections, riots, civil commotions, strikes, lockouts or other labor disturbances, other acts of God or acts, omissions or delays in acting by any governmental authority or the other Party.

15.WAIVER

The waiver from time to time by either Party of any right or failure to exercise any remedy will not operate or be construed as a continuing waiver of the same right or remedy or of any other of such Party's rights or remedies provide under this Research Agreement

16.SEVERABILITY

In case any provision of this Research Agreement is determined by a court of competent justification to be invalid, illegal or unenforceable, the validity, legality and enforceability of the remaining provisions will not in any way be affected or impaired thereby.

17.PROGRESS REPORTS

NEC shall initiate weekly (or as agreed) tele-conferences or as agreed with CHENNAIGAMES STUDIO personnel in order to assess the progress, achievements and other related issues of a Project Statement of Work, at a time mutually convenient to both the Parties. The day and time (e.g. Wednesday 10 AM Indian Standard Time) for such teleconferencing or as agreed shall be fixed to make it convenient for the concerned persons of CHENNAIGAMES STUDIO and NEC to attend such teleconference. The Coordinators of both CHENNAIGAMES STUDIO and NEC shall attend the teleconference, along with other concerned personnel as necessary.

18. INDEPENDENT CONTRACTORS

The Parties are each an independent contractor and the relationship between the Parties does not constitute a partnership, joint venture or agency of any kind. Neither Party have the authority to make any statements, representations or commitments of any kind or to make any action that will be binding on the other Party, without the prior written consent of the other Party.

19.NOTICES

All notices and other communication provided for hereunder must be in writing and must be mailed by first-class, registered or certified mail, postage paid, or delivered personally, by overnight delivery service, by facsimile, or by electronic transmission with confirmation of receipt, addressed as follows:

For the Company:

CHENNAIGAMES STUDIO Pvt, Ltd.,
AF3, 1ST Floor, Old no.4, New no.7, KSR Vasantham Apartment,
Govardhan Street, Royapettah,
Chennai 600014,
Tamilnadu, India,

For the University:

NATIONAL ENGINEERING COLLEGE,
Kovilpatti, Thoothukudi District,
TamilNadu

Either Party may, by like notice, specify or change an address to which notices and communications must thereafter by sent.

20.ASSIGNMENT

It is understood by the Parties herein this Agreement is based on the professional competence and expertise of each party and hence neither Party shall transfer or assign this Agreement, or rights or obligations arising hereunder, either wholly or in part, to any third party.

21.COSTS

Each Party shall bear the respective costs of carrying out the obligations under this Agreement as agreed.

22.MVP-COMPETE

Actual time during period of this agreement, NEC will not engage himself in any other Agreement or contract of the same nature and services as provided in the agreement with any third party without prior written permission of CHENNAIGAMES STUDIO.

23. APPLICABLE LAW AND LANGUAGE

This Agreement shall in all respects be governed by and constructed in accordance with the governing laws of the Republic of India. All documents, correspondence and communication related to this Agreement shall be in English.

24. MUTUAL REPRESENTATIONS AND WARRANTIES

Each Party further represents and warrants that:

a) It has all requisite corporate power and authority to execute, deliver and perform its obligations under this Agreement and has been fully authorized by all requisite importance actions to do so;

b) It is not in violation of any contract, law, regulation, order or decree or that it is hindered or obstructed in any manner by any contract, law, regulation, order or decree in effectively performing its obligations under the terms and conditions of this Agreement;

c) This Agreement is a valid and binding obligation, enforceable against it in accordance with its terms;

d) It will perform its obligations under this Agreement in compliance with all applicable laws, necessary for the performance of its obligations hereunder; and

e) It will provide such cooperation as reasonably necessary in order to give full effect to the provisions of this Agreement.

25. NATIVE AGREEEMENT

This Agreement shall constitute the entire Agreement between the Parties hereto relating to the subject matter thereof, and there are no oral statements, representations, warranties, undertakings or agreements between the Parties except as provided herein. This Agreement may not be amended or modified in any respect except by written instrument signed by the Parties hereto.

26.SIGNED IN DUPLICATE

This Agreement is executed in duplicate with each copy being an official version of the Agreement and having equal legal validity.

BY SIGNING BELOW, the parties, acting by their duly authorized officers, have caused this Memorandum of Understanding to be executed, effective as of the day and year first above written.

On behalf of

CHENNAIGAMES STUDIO Pvt Ltd,

Chennai

By R. Mohan DOSS

Name: Mr. R. MOHAN DOSS

Title: Co-Founder & CEO

Date: 03.08.2026

CHENNAIGAMES STUDIO PRIVATE LIMITED

On behalf of

National Engineering College

Kovilpatti

By 3/8/2026

Name: Dr. K. KALIDASA MURUGAVEL

Title: PRINCIPAL

Date: 03.08.2026

National Engg. College Kovilpatti 628 503 K.R. Nagar

Witness:

1. For CHENNAIGAMES STUDIO PRIVATE LIMITED

Director

2.

Witness:

1. 3/8/26

Dr.V. GOMATHI, M.Tech.,Ph.D.,
Prof. & Head, Dept. of Computer Science & Engg.
National Engineering College
K.R. Nagar, Kovilpatti-628 503.

2. J. Karthikeya 3/8/26

[J. KARTHIKEYAN
AP(SG)/CSE]